

द.ग. ईस्ट रेलवे लिमि. द्वारा ईस्ट रेल
कॉरिडोर निर्माण कार्य

AREA:- 19.850 HA.

Encl:- 1. 1st stage approval letter
26/04/2015
2. 2nd stage approval letter.
22/05/2015.

F. No. 8-105/2014-Fc
Government of India
Ministry of Environment, Forests and Climate Change
(FC Section)

Indira Paryavaran Bhawan,
Aliganj, Jor Bag Road,
New Delhi - 110003.

Dated: 26th February, 2015

To
The Principal Secretary (Forests),
Government of Chhattisgarh,
Raipur.

Sub: Diversion of 76.099 ha of forest land for construction of east rail corridor in favour of Chhattisgarh East Railway Limited, Chhattisgarh in Raigarh District of Chhattisgarh.

Sir,

I am directed to refer to the State Government's letter No. F-5-24/2014/10-2 dated 17.11.2014 on the above mentioned subject seeking prior approval of the Central Government under Section-2 of the Forest (Conservation) Act, 1980 and subsequent letter No. Bhu-Prabandh/Vividh/115-368/312 dated 04.02.2015, forwarding information/documents, as sought by the Ministry. The proposal was examined by the Forest Advisory Committee in its meeting held on 22nd December, 2014.

After careful examination of the proposal of the State Government and on the basis of the recommendation of the Forest Advisory Committee, the Central Government hereby conveys the 'in-principle' approval for diversion of 76.099 ha of forest land for construction of east rail corridor in favour of Chhattisgarh East Railway Limited, Chhattisgarh in Raigarh District of Chhattisgarh subject to fulfilment of the following conditions:

- (i) Legal status of the diverted forest land shall remain unchanged;
- (ii) Compensatory afforestation over the degraded forest land, twice in extent to the forest land being diverted shall be raised and maintained by the State Forest Department at the cost of the User Agency;
- (iii) The land identified for the purpose of CA shall be clearly depicted on a Survey of India toposheet of 1:50,000 scale;
- (iv) The User Agency shall transfer the cost of raising and maintaining the compensatory afforestation, at the current wage rate, to the State Forest Department. The scheme may include appropriate provision for anticipated cost increase for works scheduled for subsequent years;
- (v) The State Government shall charge the Net Present Value (NPV) of the forest land being diverted under this proposal from the User Agency as per the orders of the Hon'ble Supreme Court of India dated 28.03.2008, 24.04.2008 and 09.05.2008 in Writ Petition (Civil) No. 202/1995 and the guidelines issued by this Ministry vide its letter No. 5-3/2007-FC dated 05.02.2009 in this regard;
- (vi) At the time of payment of the Net Present Value (NPV) at the then prevailing rate, the User Agency shall furnish an undertaking to pay the additional amount of NPV, if so determined, as per the final decision of the Hon'ble Supreme Court of India;



- (vii) All the funds received from the user agency under the project, except the funds realized for regeneration/ demarcation of safety zone, shall be transferred to Ad-hoc CAMPA in the Saving Bank Account pertaining to the State concerned;
- (viii) The User Agency shall obtain the Environment Clearance as per the provisions of the Environmental (Protection) Act, 1986, if required;
- (ix) No labour camp shall be established on the forest land;
- (x) The User Agency shall provide fuels preferably alternate fuels to the labourers and the staff working at the site so as to avoid any damage and pressure on the nearby forest areas;
- (xi) The boundary of the diverted forest land shall be demarcated on ground at the project cost, by erecting four feet high reinforced cement concrete pillars, each inscribed with its serial number, forward and back bearing and distance from pillar to pillar;
- (xii) The layout plan of the proposal shall not be changed without the prior approval of the Central Government;
- (xiii) If required, provision for construction of sufficient underpasses for safe crossing of animal shall be made in consultation with Chief Wildlife Warden
- (xiv) As and when required speed of train shall be regulated in consultation with Chief Wildlife Warden of the State Government.
- (xv) A integrated Wildlife Management Plan shall be prepared and implemented by the state Government at the project cost to mitigate the impact railway projects.
- (xvi) The forest land shall not be used for any purpose other than that specified in the proposal;
- (xvii) The forest land proposed to be diverted shall under no circumstances be transferred to any other agency, department or person without prior approval of the Central Government;
- (xviii) No damage to the flora and fauna of the adjoining area shall be caused;
- (xix) Any tree felling shall be done only when it is unavoidable and that too under strict supervision of the State Forest Department;
- (xx) The user agency in consultation with the State Government shall create and maintain alternate habitat/home for the avifauna, whose nesting trees are to be cleared in this project. Bird's nests artificially made out of eco-friendly material shall be used in the area, including forest area and human settlements, adjoining the forest area being diverted for the project;
- (xxi) All other conditions proposed by the State Government at the time of submission of the proposal to the Central Government shall be complied with by the User Agency;
- (xxii) The State Government shall ensure controlled speed limit if the trains passing through the forest portion to enable the trains drivers to react to the sudden appearance of the wild animals on the track;
- (xxiii) Ex-situ conservation of endemic species of flora/fauna lost/disturbed in the process of execution of the project may be ensured;
- (xxiv) The reclamation of quarry should be done under the supervision of the State Forest Department. The quarry shall be reclaimed and afforested completely before the project is closed;



- (xxv) The user agency will provide retaining walls, breast walls and drainage as per requirement to make the slope stable;
- (xxvi) The User agency will undertake comprehensive soil conservation measures at the project cost in consultation with the State Forest Department;
- (xxvii) The designing of culverts/bridges, if any, over the natural streams/rivers/canals should be done in such a manner that it does not hamper the natural course of water, does not give rise to water-logging, and also does not hamper movement of wild animals;
- (xxviii) The user agency shall submit the annual self compliance report in respect of the above conditions to the State Government and to the concerned Regional Office of the Ministry regularly;
- (xxix) Any other condition that the concerned Regional Office of this Ministry may stipulate, from time to time, in the interest of conservation, protection and development of forests & wildlife; and
- (xxx) The User Agency and the State Government shall ensure compliance to provisions of the all Acts, Rules, Regulations and Guidelines, for the time being in force, as applicable to the project.

After receipt of the compliance report on the fulfilment of the above mentioned conditions from the State Government, formal approval will be considered in this regard under Section-2 of the Forest (Conservation) Act, 1980. The transfer of forest land to the User Agency shall not be affected by the State Government till formal orders approving the diversion of forest land are issued by the Central Government.

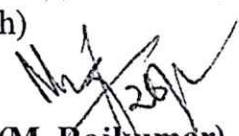
Yours faithfully,


(M. Rajkumar)

Assistant Inspector General of Forests (FC)

Copy to:

1. The Principal Chief Conservator of Forests, Government of Chhattisgarh, Raipur
2. Nodal Officer O/o the Principal Chief Conservator of Forests, Government of Chhattisgarh, Raipur
3. Addl. PCCF, Regional Officer, Bhopal
4. User Agency (Executive Engineer, Chhattisgarh East Railway Limited, 2nd Floor, CSIDC, Commercial Complex, Raipura Chowk, Raipur, Chhattisgarh)
5. Monitoring Cell, FC Divisions, MoEF
6. Guard file


(M. Rajkumar)

Assistant Inspector General of Forests (FC)

F. No. 8-105/2014-Fc
Government of India
Ministry of Environment, Forests and Climate Change
(FC Section)

Indira Paryavaran Bhawan,
Aliganj, Jor Bag Road,
New Delhi - 110003.
Dated: 22nd May, 2015.

To
The Principal Secretary (Forests),
Government of Chhattisgarh,
Raipur.

Sub: Diversion of 76.099 ha of forest land for construction of east rail corridor in favour of Chhattisgarh East Railway Limited, Chhattisgarh in Raigarh District of Chhattisgarh.

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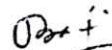
I am directed to refer to the State Government of Chhattisgarh's letter no. F-5-24/2014/10-2 dated 17.11.2014 and subsequent letter No. Bhu-Prabandh/Vividh/115-368/312 dated 04.02.2015, forwarding information/ documents, on the above subject seeking prior approval of the Central Government under Section -2 of the Forest (Conservation) Act, 1980. After careful consideration of the proposal by the Forest Advisory Committee (FAC) constituted under section-3 of the said Act, 'in-principle' approval to the proposal was granted vide this Ministry's letter of even number dated 26th February, 2015 subject to certain conditions prescribed therein. The State Government has furnished compliance report in respect of the conditions stipulated in the 'in-principle' approval and has requested the Central Government to grant final approval.

In this connection, I am directed to say that on the basis of the compliance report furnished by the State Government vide letter no. Bhu-Parbhandh/Vividh/115-368/1128 dated 02.05.2015, final approval of the Central Government is hereby granted under section-2 of the Forest (Conservation) Act, 1980 for diversion of 76.099 ha of forest land for construction of east rail corridor in favour of Chhattisgarh East Railway Limited, Chhattisgarh in Raigarh District of Chhattisgarh subject to fulfillment of the following conditions:-

1. The legal status of the diverted forest land shall remain unchanged.
2. Compensatory afforestation over the degraded forest land, twice in extent to the forest land being diverted, shall be raised and maintained by the State Forest Department from the funds already deposited by the user agency.
3. The User Agency shall pay the additional amount of NPV, if so determined, as per the final decision of the Hon'ble Supreme Court of India;
4. If required, provision for construction of sufficient underpasses for safe crossing of animal shall be made in consultation with Chief Wildlife Warden.
5. As and when required speed of train shall be regulated in consultation with Chief Wildlife Warden of the State Government.
6. An integrated Wildlife Management Plan shall be prepared and implemented by the state Government at the project cost to mitigate the impact railway projects.

7. The user agency in consultation with the State Government shall create and maintain alternate habitat/home for the avifauna, whose nesting trees are to be cleared in this project. Bird's nests artificially made out of eco-friendly material shall be used in the area, including forest area and human settlements, adjoining the forest area being diverted for the project;
8. The designing of culverts/bridges, if any, over the natural streams/rivers/canals should be done in such a manner that it does not hamper the natural course of water, does not give rise to water-logging, and also does not hamper movement of wild animals;
9. All other conditions stipulated in the Stage-I approval for which the user agency has submitted undertakings shall be complied with.
10. The user agency shall submit the annual self compliance report in respect of the above conditions to the State Government and to the concerned Regional Office of the Ministry regularly.
11. Any other condition that the concerned Regional Office of this Ministry may stipulate, from time to time, in the interest of conservation, protection and development of forests & wildlife.
12. The User Agency and the State Government shall ensure compliance to provisions of the all Acts, Rules, Regulations and Guidelines, for the time being in force, as applicable to the project.

Yours faithfully,

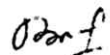


(B.K. Singh)

Director (Forest Conservation)

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5. Monitoring Cell, FC Divisions, MoEF
6. Guard file



(B.K. Singh)

Director (Forest Conservation)